28. Which one of the following statements is correct?

(a) Rights are claims of the State against the citizens

(b) Rights are privileges which are incorporated in the Constitution of a State.

(c) Rights are claims of the citizens against the State.

(d) Rights are privileges of a few citizens against the many.

Ans : (c) Rights are legal and moral entitlements or claims of a person over other fellow beings over society and over the government.

29. Which of the following statements is/are true of the Fundamental Duties of an Indian citizen?

1. A legislative process has been provided to enforce these duties.
2. They are correlative to legal duties.

Select the correct answer using the code given below:

(a) 1 only (b) 2 only

(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (d) There is no legislative process provided to enforce the fundamental duties and they are not correlative to legal duties. Like the directive principles, the fundamental duties are also non-justiciable. The constitution does not provide for their direct enforcement by the courts. Moreover, there is no legal sanction against their violation.

30. In the context of India, which one of the following is the correct relationship between Right and Duties?

(a) Rights are correlative with Duties.

(b) Rights are personal and hence independent of society and Duties.

(c) Rights, not Duties, are important for the advancement of the personality of the citizen.

(d) Duties, not Rights, are important for the stability of the State.

Ans : (a) Rights are what we want others to do for us whereas the duties are those acts which we should perform for others. Thus a right comes with an obligation to show respect for the rights of others. The obligations that accompany rights are in the form of duties.

31. Consider the following statements:

With reference to the Constitution of India, the Directive Principles of State Policy constitute limitations upon

1. legislative function.
2. executive function.

Which of the above statements is/are correct?

(a) 1 only (b) 2 only

(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (d) It is the fundamental rights that constitute limitations upon state action (whether legislative or executive). The directive principle is in the nature of instruments of instruction to the government of the day to achieve certain ends by their actions. It guides them, not restrict them.

● Emergency

32. Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State?

1. Dissolution of the State Legislative Assembly
2. Removal of the Council of Ministers in the State
3. Dissolution of the local bodies

Select the correct answer using the code given below:

(a) 1 and 2 only (b) 1 and 3 only

(c) 2 and 3 only (d) 1, 2 and 3

Ans : (b) When the President rule is imposed in a state, the president dismisses the state council of ministers headed by the chief minister. The state governor, on behalf of the president carries on the state administration with the help of the chief secretary of state or the advisors appointed by the president. This is the reason why a proclamation under Article 356 is popularly known as the imposition of 'President' Rule' in a state. Further the president either suspends or dissolves the state legislative assembly. The parliament passes the state legislative bills and the state budget. The president does not lead to the dissolution of local bodies. Hence, the answer is 1 & 3 only.

● Parliament

33. The main advantage of the parliamentary form of government is that

(a) the executive and legislature work independently.

(b) it provides continuity of policy and is more efficient.

(c) the executive remains responsible to the legislature.

(d) the head of the government cannot be changed without election.

Ans : (c) The parliamentary system is also known as the Westminister model of government a responsible government and cabinet government. The constitution establishes the parliamentary system not only at the centre but also in the states. The features of parliamentary government in India are :-

(a) Presence of nominal and real executives;

(b) Majority party rule,

(c) Collective responsibility of the executive to the legislature.

(d) Membership of the ministers in the legislature,

(e) Leadership of the Prime minister or the chief minister.

(f) Dissolution of the lower house (Loksabha or Assembly)

● Legislature : Council of Ministers

34. Consider the following statements:

1. In the election for Lok Sabha or State Assembly, the winning candidate must get at least 50 percent of the votes polled, to be declared elected.
2. According to the provisions laid down in the Constitution of India, in Lok Sabha, the Speaker's post goes to the majority party and the Deputy Speaker's to the Opposition.

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only

(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (d) Statement 1 is not correct. In the election for Loksabha and state assembly, the first past the post system is followed where a candidate who polls more votes than any other candidates is elected.

Statement 2 is not correct. As per the Constitution the speaker and deputy speaker in Loksabha are elected among its members.

35. Out of the following statements, choose the one that bring out the principle underlying the Cabinet form of Government:

(a) An arrangement for minimizing the criticism against the Government whose responsibilities are complex and hard to carry out to the satisfaction of all.

(b) A mechanism for speeding up the activities of the Government whose responsibilities are increasing day by day.

(c) A mechanism of parliamentary democracy for ensuring collective responsibility of the Government to the people.

(d) A device for strengthening the hands of the head of the Government whose hold over the people is in a state of decline.

Ans : (c) Under Cabinet form of government, the cabinet is responsible to the parliament. The system is also known as 'Westminster' model of government and collective responsibility implies that ministers are bound by the decision of the cabinet even when they had no part in their discussion or decision. Secondly, all members of the government can speak in the parliament. Unless the prime minister relieves them of that duty.

36. For election to the Lok Sabha, a nomination paper can be filed by

(a) anyone residing in India.

(b) a resident of the constituency from which the election is to be contested.

(c) any citizen of India whose name appears in the electoral roll of a constituency.

(d) any citizen of India.

Ans : (c) Qualification for election to Loksabha:

- Must be a citizen of India.
- Not less than 25 years of age.
- Must be registered as an elector for a parliamentary constituency

37. With reference to the Parliament of India, consider the following statements::

1. A private member's bill is a bill presented by a Member of Parliament who is not elected but only nominated by the President of India.
2. Recently, a private member's bill has been passed in the Parliament of India for the first time in its history.

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only

(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (d) A private member's bill is introduced by any member of parliament other than a minister. Its introduction in the house required one month's notice. Its drafting is the responsibility of the member concerned. The last private member's bill passed by parliament was the Supreme Court (Enlargement of Criminal Appellate Jurisdiction) Bill, 1968, which became an Act on August 9, 1970. The Rights of Transgender Persons Bill, 2014, passed by the Rajya Sabha on Friday, is the first private members' bill to get the upper house approval in the past 45 years.

38. The Parliament of India exercises control over the functions of the Council of Ministers through

1. Adjournment motion
2. Question hour
3. Supplementary questions

Select the correct answer using the code given below:

(a) 1 only (b) 2 and 3 only

(c) 1 and 3 only (d) 1, 2 and 3

Ans : (d) The parliament Exercises Control over the ministers through various devices like question hour, discussions, adjournment motion no-confidence motion, etc.

● Judiciary (Central & State)

39. In India, Judicial Review implies:

(a) the power of the Judiciary to pronounce upon the constitutionality of laws and executive orders.

(b) the power of the Judiciary to question the wisdom of the laws enacted by the Legislatures.

(c) the power of the Judiciary to review all the legislative enactments before they are assented to by the President.

(d) the power of the Judiciary to review its own judgments given earlier in similar or different cases.